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CASE #	CASE NAME	HEARING NAME
CVPS2408394	DESERT HEALTHCARE DISTRICT VS ALL PERSONS INTERESTED IN THE MATTER HEREIN DESCRIBED LEASE PURCHASE TRANSACTION AND RELATED CONTRACTS AND OBLIGATIONS OF DESERT HEALTHCARE DISTRICT WITH RESPECT TO DESERT REGIONAL MEDICAL CENTER, INC.	MOTION FOR RECONSIDERATION OF ORDERS DENYING MOTIONS TO COMPEL PRODUCTION OF DOCUMENTS

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiff Desert Healthcare District filed a Complaint for Validation on December 31, 2024 against all persons interested in the matter of a certain lease to purchase transaction and related contracts and obligations of Desert Healthcare District with respect to Desert Regional Medical Center. The Complaint seeks to validate the action taken by Plaintiff regarding the lease purchase agreement (LPA) and the actions of District's Board in approving a fairness opinion from an independent consultant and approving the LPA and ordering that a measure relating to approval of the LPA be placed on the ballot (Measure AA), which was approved by the voters by a margin of 72.34%.

In the instant motion, Defendant Eisenhower Medical Center ("Eisenhower") moves this Court for reconsideration of its March 10, 2026 Orders denying Eisenhower's Motion to Compel Plaintiff Desert Healthcare District's (the "District") Responses to Requests for Production and Motion to Compel Plaintiff-Intervenor Desert Regional Medical Center, Inc.'s ("Tenet") Responses to Requests for Production (collectively, the "Motions to Compel Production of Documents"). Eisenhower seeks reconsideration on a limited and targeted basis only, as to a narrowed set of requests for production ("RFPs") tailored to obtain documents directly bearing on the dispositive factual and legal issues before the Court.

Plaintiff Desert Healthcare District and Plaintiff-Intervenor Eisenhower oppose. They ask the Court to reject Eisenhower's request to reconsider its denial of Eisenhower's motion to compel the production of documents based on a subsequent summary judgment motion ruling. In its March 10, 2026 Order, the Court denied in full Eisenhower's Motions to Compel further responses to Requests for Production served on both the Desert Healthcare District and Desert Regional Medical Center, Inc. finding that Eisenhower's requests for production were overbroad and irrelevant and effectively a fishing expedition. (Garlick Decl. Ex. 1 [3/10/2026 Hrg. Tr.] at p. 25:22-26:2.) In so ruling, the Court recognized that validation actions are required to proceed expeditiously and a Court's evaluation in validation actions is typically limited to what evidence was before the agency, i.e. the documents contained in the administrative record. (Id. at p. 8:6-12.) Three weeks after denying the motion for summary judgment, the Court issued three additional discovery rulings that are entirely consistent with the order that Eisenhower is now asking this Court to reconsider. In its April 14 and 15 rulings, the Court denied Eisenhower's motions to compel with - 5 - OPPOSITION TO MOTION FOR RECONSIDERATION 1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 respect to all of Eisenhower's requests for admission and all but one interrogatory for the same reasons the motion to compel the requests for production was denied. In the subsequent rulings, the Court took a narrow view of relevance consistent with the order on the RFPs.

Motion for Reconsideration

A motion for reconsideration must be based on new or different facts, circumstances or law. (C.C.P. §1008(a).) The legislative intent was to restrict these motions to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden is comparable to that of a party seeking a new trial on the ground of newly discovered evidence; that is, the information must be such that the moving party could not with reasonable diligence have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.) A motion for reconsideration must be brought within 10 days of the service of the written notice of entry of the order (C.C.P. §1008(a)), while a renewal of a motion under C.C.P. §1008(b) has no explicit time limit.

“The ‘different state of facts’ language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier.” (*Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.) “The moving party’s burden is the same as that of a party seeking new trial on the ground of ‘newly discovered evidence, which he could not, with reasonable diligence, have discovered and produced at the trial.’” (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198.) And so the moving party must provide the trial court with a satisfactory explanation as to why he or she failed to produce the evidence at an earlier time. (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338; *Lucas v. Santa Maria Public Airport Dist.* (1995) 39 Cal.App.4th 1017, 1028.)

Here, moving Defendant has not cited any new or different facts, circumstances or law that would allow this Court to change its prior ruling on March 10, 2026. As responding Plaintiffs point out, the instant request is not actually a request for reconsideration, but instead seeks for the court to rule on discovery requests, albeit narrower in scope ones, that have not been served. A motion for reconsideration is not the proper vehicle for the court to rule on the instant request.